

POLITY 35 | NHRC AND SHRC

Statutory mandate -> inquiry -> recommendation -> accountable follow-through

01

SOURCE AND AMENDMENT RAIL

28 Sep 1993 commencement -> 8 Jan 1994 assent -> 2006 procedure repair -> 2019 composition and tenure repair

EXAM LIMIT

Statutory, not constitutional. Act 10 of 1994.

02

SECTION 2 HUMAN-RIGHTS FIELD

Life + liberty + equality + dignity; Constitution or defined International Covenants; enforceable by Indian courts

EXAM LIMIT

ICCPR + ICESCR + notified UNGA instrument; not every moral claim.

03

NHRC COMPOSITION

Former CJI/SC Judge Chair + SC Judge + HC Chief Justice + 3 experts, at least 1 woman

EXAM LIMIT

7 deemed members only for section 12(b)-(j), not complaint inquiry 12(a).

APPOINTMENT TERM AND REMOVAL



04

APPOINTMENT, TERM AND REMOVAL

Six-member committee -> President appoints | 3 years, reappointment, age 70 | President removes

EXAM LIMIT

Misbehaviour/incapacity needs Supreme Court inquiry; direct listed grounds separate.



05

SECTION 12 FUNCTIONS

Inquiry + court intervention with approval + visits + safeguard review + treaty study + research/literacy/NGOs

EXAM LIMIT

Public-servant violation, abetment or negligence-in-prevention nexus.



06

EVIDENCE AND INVESTIGATION

Section 13 civil-court tools | sections 11/14 staff and agency | sections 15/16 fairness

EXAM LIMIT

Commission verifies agency report; evidence power is not adjudication.



07

SECTION 18 OUTPUT

Recommend compensation/prosecution/interim relief | approach SC/HC | 1-month comments | publish

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EXAM LIMIT

Recommendation is not decree, conviction, direct punishment or automatic compliance.

08

ARMED-FORCES SPECIAL ROUTE

Seek Central report -> stop or recommend -> 3-month action response -> publish

EXAM LIMIT

No ordinary direct NHRC inquiry; State police not automatically armed forces.

09

SHRC FEDERAL DESIGN

State may constitute | HC-level chair | Governor appoints | President removes | 3 years/70

EXAM LIMIT

List II + III only; already-inquired bar; section 12(f) omitted.

10

COURTS, PROSECUTORS AND SITS

State may notify Sessions Court with HC CJ concurrence | 7-year prosecutor | Government SIT under section 37

EXAM LIMIT

Commission finds; investigators investigate; prosecutors prosecute; courts adjudicate.

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11

JURISDICTION AND CASES

36(1) overlap | 36(2) one year | Paramjit Kaur court-assigned expert | Dhoundial statutory bar | EEVFAM credible inquiry

EXAM LIMIT

Court reference is exceptional; continuing effects do not erase the statutory bar.



12

EVALUATION AND REFORM

Access + evidence + reports versus recommendation + time bar + investigator dependence + uneven follow-up

EXAM LIMIT

Open plural selection, independent investigation, reasoned response, calibrated statutory reform.

ANSWER SPINE

statutory identity -> exact section -> mechanism -> named case/evidence -> effect -> legal limit -> matched reform -> qualified verdict

No binding adjudication | no direct punishment | no compensation decree | no unlimited old-case jurisdiction